

June 9, 2026

Senator Karen Spilka
President of the Senate
24 Beacon Street, Room 332
Boston, MA 02133

Senator Cynthia Stone Creem
Majority Leader of the Senate
24 Beacon Street, Room 312-A
Boston, MA 02133

Senator William Brownsberger
President Pro Tempore
24 Beacon Street, Room 319
Boston, MA 02133

Senator Bruce Tarr
Minority Leader
24 Beacon Street, Room 308
Boston, MA 02133

RE: Ad Trade Letter in Opposition to Massachusetts H. 5479

Dear President Spilka, Majority Leader Stone Creem, President Pro Tempore Brownsberger, and Minority Leader Tarr:

On behalf of the advertising industry, we write to oppose Massachusetts H. 5479 and we offer this letter to express our non-exhaustive list of concerns with the proposed legislation.¹ We and the companies we represent, many of whom do substantial business in Massachusetts, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and industry policies. However, as described in more detail below, H. 5479 contains provisions that are out-of-step with privacy laws in other states and will only add to the increasingly complex privacy landscape for both businesses and consumers across the country. We ask you to adopt an approach to data privacy that is harmonized with other state privacy laws, like those in New Hampshire and Connecticut. Accordingly, we ask you to decline to advance the bill as drafted out of the Senate.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,000 companies that power the commercial Internet, which accounted for nearly 20 percent of total U.S. gross domestic product ("GDP") in 2024.² By one estimate, approximately 17.8% of Massachusetts jobs in 2024 were related to the ad-subsidized Internet, a share projected to increase to 19.4% by 2029.³ Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage further with you on the issues we discuss in this letter.

¹ Massachusetts H. 5479 (2026 Session) located [here](#) (hereinafter, "H. 5479").

² S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.

³ *Id.* at 15-16.

I. Massachusetts' Privacy Approach Should be Harmonized with Existing State Privacy Laws

We and our members support a national standard for data privacy at the federal level. In the absence of such a national standard, it is critical for state legislators to seriously consider the costs and confusion to both consumers and businesses that will accrue from a patchwork of differing privacy standards across the states. Massachusetts should focus its efforts on harmonizing with the approach taken in a majority of other states. Harmonization with existing privacy laws is essential for creating an environment where consumers in Massachusetts have a consistent set of expectations and the same rights as individuals in other states, while minimizing compliance costs for businesses operating in the state.

One way H. 5479 differs from other state privacy laws is its requirement for a controller that makes a “material change to its privacy notice” to notify each affected consumer *before* the change can be implemented. This requirement goes further than other state comprehensive privacy laws by requiring more than posting an updated privacy notice online or making the notice reasonably accessible to consumers, and reserves obligations to acquire consent to where a company makes a material change to the way they process *previously collected* personal data. H. 5479 would obligate controllers to provide the notice directly to consumers, and, where a material change is made, to notify each affected consumer before applying the change to *prospectively* collected personal data. H. 5479 also includes non-standard data minimization provisions, has no concept of “pseudonymous data,” and would grant regulatory authority to the Massachusetts Attorney General (“MA AG”), creating the potential for even more fragmented and confusing privacy requirements in Massachusetts.⁴ The data minimization language should be harmonized with other state privacy laws by permitting processing that is consistent with the purposes disclosed in a company’s privacy policy; as drafted, the proposal could not be operationalized consistently across individual consumers because it would require a controller to assess on a consumer-by-consumer basis the “reasonable expectations of *the* consumer.” In addition, the bill should recognize the privacy-enhancing nature of pseudonymous data by excluding it from most individual rights requests, while still preserving opt-out rights where such data is used for sales, targeted advertising, or profiling in furtherance of solely automated decisions that produce legal or similarly significant effects concerning the consumer.

Compliance costs associated with divergent privacy laws are significant. One report found that state privacy laws could impose costs of between \$98 billion and \$112 billion annually, with costs exceeding \$1 trillion dollars over a 10-year period and small businesses shouldering a significant portion of the compliance cost burden.⁵ We encourage the Senate to take steps to align the bill with the majority of other state privacy laws that have been enacted.

⁴ H. 5479 §§ 6(1), 13(a).

⁵ Daniel Castro, Luke Dascoli, and Gillian Diebold, *The Looming Cost of a Patchwork of State Privacy Laws* (Jan. 24, 2022), located at <https://itif.org/publications/2022/01/24/looming-cost-patchwork-state-privacy-laws> (finding that small businesses would bear approximately \$20-23 billion of the out-of-state cost burden associated with state privacy law compliance annually).

II. The Bill's Prohibition on Sales of Precise Geolocation Data Would Hinder Legitimate Location-Based Advertising and Emergency Alerts

H. 5479 would ban controllers from “selling” the precise geolocation data of any individual or consumer collected or processed within the Commonwealth of Massachusetts, even with the affirmative consent of the individual or consumer.⁶ H. 5479 would take an overly broad and blunt approach to regulating location data that would unnecessarily disrupt data practices that allow companies to reach consumers with relevant content and advertising to enable them to learn about goods and services they value that may be in close proximity to them. Additionally, by broadly restricting the transfer of precise geolocation data in Massachusetts, the bill could also disrupt critical emergency alerts and other sensitive public safety notifications that rely on timely access to third party location data to reach individuals in affected areas.⁷ The Senate should instead align its approach with the majority of state privacy laws which permit precise geolocation data “sales” with a consumer’s consent. This approach to location data empowers consumers to make elections that enable them to realize the benefit of location-driven services or deny access to location about their devices. Adopting the predominant approach would better protect Massachusetts residents without weakening public safety communications and legitimate location-based advertising.

III. A Requirement to Disclose Names of Specific Third-Party Partners Would Interfere with Legitimate Business and Create Competition Concerns

H. 5479 also diverges from nearly all state privacy laws by requiring covered entities to disclose “a list of third parties” to which the controller has sold personal data.⁸ The vast majority of other states that have enacted privacy laws do not include this impractical and duplicative requirement. Instead, most other state privacy laws require companies to disclose the *categories* of third parties to whom they transfer personal data rather than the specific names of such third parties themselves.⁹

Requiring documentation or disclosure of the names of entities would be operationally burdensome, as covered entities change business partners frequently, and companies regularly merge with others and change names. For instance, a covered entity may engage in a data exchange with a new business-customer on the same day it responds to a consumer disclosure request. This requirement would either force the covered entity to refrain from engaging in commerce with the new business-customer until its consumer disclosures are updated or risk violating the law. This is an unreasonable restraint.

⁶ H. 5479 § 7(a).

⁷ See, e.g., *Federation for Internet Alerts*, located [here](#) (describing a partnership between FIA and the National Center for Missing and Exploited Children (NCMEC) that leverages the same technology used to deliver advertising and marketing messages to issue and maximize the effectiveness of alerts for emergencies such as child abductions, tornado warnings, and other hazards).

⁸ H. 5479 § 4(a)(2).

⁹ See, e.g., Cal. Civ. Code § 1798.110; Va. Code Ann. § 59.1-578(C); Colo. Rev. Stat. § 6-1-1308(1)(a); Conn. Gen. Stat. § 42-520(c)(5); Utah Rev. Stat § 16-61-302(1)(a).

From an operational standpoint, constantly updating a list of all third-party partners a covered entity works with would take significant resources and time away from efforts to comply with other new privacy directives in H. 5479. Consequently, covered entities may be forced to jeopardize new business opportunities and relationships just to compile, maintain, update, and distribute these ephemeral lists.

International privacy standards like the European Union's General Data Protection Regulation ("GDPR") also do not explicitly require burdensome disclosures of specific third parties in response to data subject access requests, according to the text of the law. Mandating that companies disclose the names of their third-party partners could obligate companies to abridge confidentiality clauses they maintain in their contracts with partners and expose proprietary business information to their competitors.

Finally, the consumer benefit that would accrue from their receipt of a list of third-party partners to whom a covered entity discloses data would be minimal at best. The benefit would be especially insignificant given that H. 5479 already requires covered entities to disclose the categories of third-party partners in privacy notices for consumers.¹⁰ For these reasons, we encourage the Senate to strike the onerous language requiring disclosure of a list of specific third parties, which would help align H. 5479 with other state privacy laws that require disclosure of the categories of third parties rather than the names of such third parties themselves.

IV. A Private Right of Action is an Inappropriate Form of Enforcement for Privacy Legislation

As presently drafted, H. 5479 would allow an individual to bring a lawsuit for an alleged violation of the bill's terms.¹¹ The bill should be updated to clarify that it does not create a private right of action under any law. We strongly believe private rights of action should have no place in privacy legislation. Instead, enforcement should be vested with the MA AG alone because such an enforcement structure would lead to stronger outcomes for individuals in Massachusetts while better enabling businesses to allocate resources to developing processes, procedures, and plans to facilitate compliance with new data privacy requirements. Attorney General enforcement, instead of a private right of action, is in the best interests of individuals and businesses alike.

The private right of action in this bill would create a complex and flawed compliance system without tangible privacy benefits for individuals. Allowing private actions would flood Massachusetts's courts with frivolous lawsuits driven by opportunistic trial lawyers searching for technical violations, rather than focusing on actual individual harm.¹² Private right of action

¹⁰ H. 5479 § 8(a)(v).

¹¹ H. 5479 § 14.

¹² A select few attorneys benefit disproportionately from private right of action enforcement mechanisms in a way that dwarfs the benefits that accrue to the consumers who are the basis for the claims. For example, a study of 3,121 private actions under the Telephone Consumer Protection Act ("TCPA") showed that approximately 60 percent of TCPA lawsuits were brought by just forty-four law firms. Amounts paid out to consumers under such lawsuits proved to be insignificant, as only 4 to 8 percent of eligible claim members made themselves available for

provisions are completely divorced from any connection to actual individual harm and provide individuals little by way of protection from detrimental data practices.

Additionally, a private right of action would have a chilling effect on the state's economy by creating the threat of steep penalties for companies that are good actors but inadvertently fail to conform to technical provisions of law. Private litigant enforcement provisions and related potential penalties for violations represent an overly punitive scheme that does not effectively address privacy concerns or deter undesired business conduct. These provisions expose businesses to extraordinary and potentially enterprise-threatening costs for technical violations of law rather than drive systemic and helpful changes to business practices. A private right of action would also encumber businesses' attempts to innovate by threatening companies with expensive litigation costs, especially if those companies are visionaries striving to develop transformative new technologies. The threat of an expensive lawsuit may force smaller companies to agree to settle claims against them, even if they are convinced the claims are without merit.¹³

Beyond the staggering cost to businesses in the Commonwealth, the resulting snarl of litigation could create a chaotic and inconsistent enforcement framework with conflicting requirements based on differing court outcomes. Overall, a private right of action would serve as a windfall to the plaintiff's bar without focusing on the business practices that actually harm individuals. We therefore encourage the Senate to clarify that H. 5479 does not create a private right of action under any law and vest enforcement authority with the MA AG alone.

* * *

compensation from the settlement funds. U.S. Chamber Institute for Legal Reform, *TCPA Litigation Sprawl* at 2, 4, 11-15 (Aug. 2017), located [here](#).

¹³ For instance, in the early 2000s, private actions under California's Unfair Competition Law ("UCL") "launched an unending attack on businesses all over the state." American Tort Reform Foundation, *State Consumer Protection Laws Unhinged: It's Time to Restore Sanity to the Litigation* at 8 (2003), located [here](#). Consumers brought suits against homebuilders for abbreviating "APR" instead of spelling out "Annual Percentage Rate" in advertisements and sued travel agents for not posting their phone numbers on websites, in addition to initiating myriad other frivolous lawsuits. These lawsuits disproportionately impacted small businesses, ultimately resulting in citizens voting to pass Proposition 64 in 2004 to stem the abuse of the state's broad private right of action under the UCL. *Id.*



We ask you to refrain from advancing H. 5479 further in the legislative process, as the bill's provisions would impose particularly onerous requirements that are out-of-step with other states and would unreasonably restrict the free flow of information that powers the economy and Massachusetts residents' access to resources. We would welcome the opportunity to engage further and work with you to craft a workable privacy framework that benefits Massachusetts businesses and consumers alike.

Thank you in advance for your consideration of this letter.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Policy
American Association of Advertising Agencies, 4As
202-355-4564

Clark Rector
Executive VP–Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria
CEO
Digital Advertising Alliance
347-770-0322

CC: Members of the Massachusetts State Senate
Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP
Matthew Stern, Venable LLP